AGREEMENT

Between

DISTRICT COUNCIL OF UNIONS

and

PORTLAND PUBLIC SCHOOLS

~~2024 - 2025~~

2026-2027

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PREAMBLE

CCL

This Agreement is entered into by and between the District Council of Unions, hereinafter referred to as the "DCU", and School District #1, Multnomah County, Oregon, hereinafter referred to as the "District".

ARTICLE 1

RECOGNITION AND APPLICATION OF THE AGREEMENT

CCL

The District recognizes the DCU as the exclusive bargaining representative for its affiliated unions. This Agreement and appendices shall apply as appropriate to all warehouse workers and truck drivers, maintenance workers, and all other classifications specified elsewhere in this Agreement, including the Appendices.

ARTICLE 2

TEMPORARY EMPLOYEES

CCL

A. A temporary employee is one who is hired to fill a position with a duration of six (6) consecutive months, or less, or to replace a regular employee on an approved leave of absence or absence due to an on-the-job injury.

B. Temporary employees are entitled to all benefits of this agreement except benefits provided by Article 19 (Reduction of Staff), and 20 (Vacation and Holidays).

C. The use of temporary employees shall not be used systematically to avoid hiring regular employees.

D. Temporary employees will, upon re-employment, be given seniority credit for previous time worked as a temporary employee unless a period of six (6) months or more has elapsed since their last period of employment.

E. An exception may be granted for apprentices upon agreement of both parties.

F. TEMPORARY EMPLOYEE SICK LEAVE

1. Temporary employees accrue sick leave based on hours worked at a rate of one (1) hour per thirty (30) hours worked, excluding overtime. Each fiscal year, (July 1 – June 30) up to forty (40) hours of accrued sick time may be used. Sick leave shall not accrue for time not worked (paid or unpaid). All sick leave absences must be taken in one (1) hour increments.

2. All newly hired temporary employees who have worked for at least 91 calendar days

may use sick leave that has accrued.

3. Employees are to make reasonable efforts to schedule sick leave, in foreseeable situations, and to provide notification to their manager.

   a. For foreseeable absences, such as pre-scheduled medical appointments, a minimum of twelve (12) hours' notice is required.

   b. For unforeseeable absences, such as sudden illness or medical emergencies, a minimum of two (2) hours' notice is required or as soon as practicable.

4. Paid sick leave can be used for physical or mental illness, injuries, or medical appointments for treatment or preventative care. It can be used for the employee's own health condition, for care of a family member, or for the purposes provided in ORS 653.616.

5. A family member is defined as the spouse of an employee, the biological, adoptive or foster parent or child of the employee, the grandparent or grandchild of the employee, a parent-in-law of the employee or a person with whom the employee was or is in a relationship of in loco parentis.

6. The District will require a physician's statement after three (3) days' absence, prior to returning to work.

ARTICLE 3

STATUS OF AGREEMENT & CONTRACT ADMINISTRATION

CCL

A. If there is a conflict between any provision of the body of this Agreement and any of the appendices, the provisions of the Appendix shall be controlling.

B. This Agreement shall modify, replace or add to any policies, rules, regulations, procedures or practices of the District which shall be contrary or inconsistent with its terms. The provisions of this Agreement and specific modifications thereto found in the appendices shall be incorporated into and become part of the established policies, rules, regulations, practices and procedures of the District for employees covered by this Agreement.

C. In the event that any provision of this Agreement is or shall at any time be determined to be contrary to law by a court or agency of competent jurisdiction, all other provisions of this Agreement shall continue in effect. Only the subjects of the deleted provisions and the affected provisions shall be subject to further collective bargaining during the term of this Agreement with respect to the period covered by the Agreement.

D. There shall be two (2) signed copies of the final Agreement for the purpose of records. One (1) shall be retained by the District, one (1) by DCU.

E. The District shall print and provide sufficient copies to affiliated unions of the DCU for distribution to all employees covered by the Agreement within sixty (60) days following ratification. The District shall provide a copy to all new employees.

F. The Board, the DCU and their respective representatives shall take no action in violation of, or inconsistent with, any provision of this Agreement.

G. The parties acknowledge that during negotiations which resulted in this Agreement, each had the right and opportunity to make demands and proposals with respect to any subjects appropriate for bargaining, and that the understandings and agreements arrived at by the parties are set forth in this Agreement. Therefore, except as otherwise expressly provided for in this Agreement, or as required by State collective bargaining law, the Board and the DCU agree that the other shall not be obligated to negotiate or bargain collectively with respect to any subject matter, during the term of this Agreement.

CONTRACT ADMINISTRATION

At the request of either party, representatives of the DCU and the District shall meet at mutually agreed times and places for the purpose of reviewing the administration of this Agreement.

The District and the DCU shall designate representatives to a Labor and Management Committee. Membership shall be limited to four designees per party. The purpose of the Labor and Management Committee is to: work together to develop operational efficiencies; identify and resolve operational issues; and, improve communication and collaboration. The function of this committee is not intended to bypass the normal grievance procedure nor the articles contained in the DCU Agreement.

ARTICLE 4

COUNCIL RIGHTS

CCL

A. The DCU, through its representatives, shall have the right to transact official DCU business relevant to employees on School District property at all reasonable times, provided that it does not interfere with or interrupt classes or other normal School District operations. Such rooms or other appropriate meeting facilities shall be made available for DCU use as requested without charge to the DCU, except that the Board may make reasonable charge when special service is required beyond normal operational practice.

B. The DCU representative shall have the right to use School District facilities and equipment, at reasonable times, when the same are not otherwise in use. The DCU agrees to pay the cost of all materials and supplies incidental to such use.

C. DCU representatives shall make their presence known to the appropriate administrative authority when visiting School District facilities. Such visits shall not interrupt work or disrupt normal School District functions.

D. The DCU shall have the right to make announcements at employee staff meetings or by use of any existing communication procedures not ordinarily available to students.

E. The DCU and its representatives shall have the right to post notices of activities and matters of DCU business and concern on staff bulletin boards. At least one such bulletin board shall be in each School District building. The DCU may use the District mailboxes for communications.

F. The Board shall make available to the DCU upon ample request to the Office of the Superintendent any and all reasonably available information, statistics and records which are relevant to negotiations or necessary for the proper enforcement of the terms of this Agreement.

G. Copies of written work rules which are applicable to a classification of employees and issued by supervision after the execution of this Agreement, for which failure to comply may result in discipline of an employee, shall be posted and provided to the employees and their affiliated DCU union.

H. The District will supply to the DCU President and DCU Vice President the employee information required under ORS 243.804(4) on a monthly basis.

I. If a job position covered under the terms of this agreement becomes open and vacant, the District will notify the DCU President and DCU Vice President on or before the day the job is posted.

ARTICLE 5

NO STRIKE CLAUSE

CCL

During the life of this Agreement, the DCU or any employee(s) will not authorize, cause, engage in, or sanction any form of illegal concerted work stoppage, boycott, picketing, or any other interruption of work at, within, or concerning any facilities or operations of the School District. The District shall not cause an illegal lockout of employees from their work.

ARTICLE 6

MANAGEMENT RIGHTS CLAUSE

CCL

Except as otherwise provided in this Agreement, the DCU agrees that the Board and its designees shall retain control and direction over all matters of inherent managerial policy. Such matters shall include, but are not limited to:

A. The executive management and administrative control of the school system and its functions and programs, including the development of budgets and actions as may be necessary to meet emergency situations;

B. Hire all employees and the right to determine their qualifications and the conditions of their continued employment or their discipline, termination, demotion, promotion or transfer;

C. Assign and direct the work of all employees, and determine the number of shifts and hours and days of work and starting times and scheduling of all employees;

D. Determine the policy affecting the selection, testing or training of employees;

E. Establish the work and school calendar;

F. Determine the services, supplies and equipment necessary to continue its operations and to determine the methods, schedules and standards of operation, the means, methods and processes of carrying on the work, including any changes, automation, or institution of new methods or processes;

G. Adopt rules, and regulations;

H. Determine the location or relocation of its facilities, including the establishment or relocations of schools, buildings, departments, divisions or subdivisions and the relocation or closing of offices, departments, schools, programs, divisions or subdivisions, buildings or other facilities;

I. Determine the placement of operations, production, services, maintenance or distribution of work and the source of materials and supplies;

J. Determine the financial policies, including all accounting procedures and all matters pertaining to public relations;

K. Determine the size of the management organization, its functions, authority, amount of supervision and table of organization; and,

L. Select and utilize technology.

The exercise of the foregoing powers, rights, authority, duties and responsibilities by the District shall be limited only by the specific terms of this Agreement and are subject to the duty to bargain under ORS 243.650 et. seq. Whenever practicable, the District shall inform the DCU of any significant issues affecting employees covered by this Agreement.

ARTICLE 7

PAYROLL DEDUCTIONS

CCL

1. Any employee who is a member of the DCU, or who has applied for membership, may sign and deliver through the DCU to the District's Payroll Office an assignment authorizing deduction of membership dues in the DCU. Such authorization shall continue in effect from year to year unless revoked in writing between September 1 and October 1 of any year.

Pursuant to such authorization the District shall deduct the regular monthly dues from a regular salary check of the employee during each calendar month. With respect to all sums deducted by the District pursuant to said authorizations, the District agrees to remit such items within ten (10) days from the date of deduction to the DCU affiliate.

2. Upon appropriate written request from the employee, the District shall deduct from the salary of any employee and make direct deposit or other appropriate remittance for the following approved deductions:

    Approved Charitable Organizations

    School District No. 1 Health and Welfare Trust Premiums Credit Union (On Point Community Credit Union)

    Up to two (2) different accounts with financial institutions Fixed or Variable Tax Deferred Annuity Plans

    I.R.C. Section 125 Flexible Spending Account Plan

ARTICLE 8

BARGAINING UNIT AFFILIATION

CCL

A. A representative from DCU or the appropriate affiliated union may meet with a newly hired employee during the employee's orientation for up to one hour. If the employee's orientation will not occur within thirty (30) days of the date of hire or if the employee will not be given a formal orientation, a representative from DCU or the appropriate affiliated union may meet with the newly hired employee within thirty (30) days of hire at a time mutually agreed upon between the union representative and the District.

B. The DCU affiliated unions agree that they will indemnify, defend and save harmless the District and all persons acting on behalf of the District from all suit actions, proceedings, complaints, claims, liability or expense resulting from the implementation or enforcement of this Article, Article 7, or any provision thereof.

ARTICLE 9

MAINTENANCE OF BENEFITS

CCL

No employee covered by this Agreement shall suffer any reduction in rate of pay or fringe benefits solely as a result of the execution of this Agreement excluding any changes to healthcare benefits under Article 17.

ARTICLE 10

GRIEVANCE PROCEDURE

CCL

The purpose of this procedure is to provide for an orderly adjustment of grievances contended by an employee or group of employees.

SECTION 1
DEFINITIONS

1. An "aggrieved" is an employee or group of employees who initiate a complaint alleging they have been directly injured through a violation of the terms of this Agreement. The term "aggrieved" also includes the DCU with respect to alleged violations of its organizational rights under this Agreement.

2. A "grievance" shall mean a contention by an aggrieved that they have been directly injured by a violation of this Agreement. The term "grievance" shall not include and this procedure shall not apply to any of the following:

   a. Any matter as to which the Board of Education is without authority to act.

   b. Any matter for which a specific administrative or judicial remedy has been prescribed by the State and/or Federal Statute. (Such as employment discrimination, health and safety, etc.)

   c. Any dispute concerning whether any part of this Agreement became effective or ceased to be effective.

3. For the purpose of this article, the term "days" shall mean work days excluding weekends and holidays.

STEP 1

The aggrieved employee shall first discuss the grievance with their supervisor, or other administrator whose action is alleged to have violated this Agreement within thirty (30) days of the alleged violation. The employee may be represented as described in Section 2. The supervisor shall respond within ten (10) days following the date the grievance was presented.

STEP 2

If no settlement is reached at Step 1, within ten (10) days the DCU or affiliated union may submit the grievance in writing to the department head who shall promptly investigate the allegations in the grievance. The department head will schedule and conduct a Step 2 grievance meeting within fifteen (15) days from the date the grievance is advanced. If a Step 2 grievance meeting is held where the aggrieved is present, they may be represented according to Section 2. Grievances regarding discipline shall be filed in writing by the DCU or affiliated union at Step 2 within ten (10) days of the alleged violation. Grievances regarding DCU alleging violations of its organizational rights under this agreement must be filed in writing at Step 2 within ten (10) days of the alleged violation. Within ten (10) days following the Step 2 grievance meeting, the department head shall render a decision in writing.

STEP 3
If the grievance is not resolved at Step 2, within ten (10) days following the department head's written decision, the DCU or affiliated union may advance the grievance to Step 3 in a written notice to the Senior Director of Employee & Labor Relations (or designee). A Step 3 grievance meeting shall be scheduled. A grievance regarding discharge shall be filed at Step 3 within ten (10) days of the alleged violation. Within ten (10) days following the Step 3 grievance meeting, the Senior Director of Labor Relations (or designee) shall render a written decision.

STEP 4
If no settlement is reached at Step 3, the affected DCU affiliated union and/or the DCU may, within ten (10) days following the Step 3 decision, notify the District in writing of intent to arbitrate and may request a list of arbitrators from the Employee Relations Board as provided below.

A. The arbitrator shall be selected from a list of seven (7) arbitrators from Oregon and Washington, provided by the Employment Relations Board. Each party shall then alternately strike one name from the list until one remains and such person shall be the arbitrator. Nothing is intended to preclude the parties from mutually agreeing on an arbitrator.

B. Neither an employee nor a DCU affiliated union may appeal to arbitration without approval of the DCU and without notice to the District of the appeal to arbitration.

C. The arbitrator must render their decision in writing within thirty (30) days following completion of the hearing.

D. The arbitrator's decision shall be confined exclusively to the explicit provision(s) of this Agreement at issue between the parties. The arbitrator shall have no authority to add to, detract from, remove, alter or amend or in any other way modify any provision of this agreement or impose on any party hereto a limitation or obligation not explicitly provided for in this agreement. The arbitrator shall not substitute their judgment for that of either the District or the DCU.

E. The decision of the arbitrator shall be binding of all parties, provided: (1) the arbitrator must restrict their decision to interpretation of the Agreement, (2) is in accordance with the legal meaning of this Agreement, (3) is based on substantial evidence, and (4) does not result in an obligation to pay money beyond amounts budgeted for the particular item or purpose in the current budget.

F. Should either party wish to seek review of an arbitrator's decision, proceedings must be instituted in a court or agency of competent jurisdiction within thirty (30) days of the effective date of the arbitrator's decision.

G. Cost charged by the arbitrator shall be shared equally by the parties as determined by the arbitrator.

SECTION 2
GENERAL PROCEDURES

A. The aggrieved must be present at Step 1 and may be present at all others. In processing the

grievance, the grievant may:

1. Represent themselves as described in Step 1 of this grievance procedure, or

2. Be represented by their union at the union's expense. The number of days indicated at each level should be considered maximum, and every effort should be made to expedite the process.

B. It may at times become necessary to extend time limits. These extensions are to be kept to a minimum and must be mutually consented to in writing by the parties involved.

C. Failure at any step of this procedure to communicate the decision in writing on a grievance within the specified time limits shall permit the grievant to proceed to the next step. Failure at any step of this procedure to appeal a decision to the next step within the specified time limits shall be deemed to be acceptance of the decision rendered at that step.

D. The District shall cooperate with the grievant in the investigations of any grievance, and further will furnish the grievant or their representative with such necessary and readily available information as requested for the processing of any grievance.

E. Except as otherwise provided by law, an employee shall invoke and exhaust the grievance procedure remedies before resorting to any other legal or administrative remedies for the conduct complained of, and failure to do so shall preclude resort to such other remedies.

F. A representative of the DCU may be present at all steps of the procedure. The DCU will be notified promptly of the terms of the final decision or settlement of any written grievance filed and may itself file a grievance based on an alleged inconsistency thereof with this Agreement within ten (10) days from receipt of such notice.

ARTICLE 11
DISCIPLINE, DEMOTION AND DISCHARGE
CCL

A. No employee shall be disciplined without cause. For the purpose of this Article, discipline shall include written warnings and reprimands (excluding evaluations) placed in the employee's personnel file, suspension or discharge.

B. If a complaint, that is, an allegation brought by a citizen or non-supervisory third party is used to support disciplinary action, the supervisor shall cause the complaint to be reduced to writing and placed in the personnel file. The name of the complainant shall be disclosed if the employee so requests.

C. An employee who is disciplined or discharged has the right to use the grievance procedure.

D. An employee shall have the right to request and have a representative present at any

meeting, called by the supervisor, which the employee reasonably believes the information they give may result in discipline. Prior to such a meeting, the employee will be notified of its purpose. The right of representation will not exist when the meeting relates solely to evaluation of the employee's work performance.

E. Discipline shall be administered in private and shall be progressive. The nature of the offense shall determine where progressive discipline is initiated. This section shall not apply to warnings related to safety issues.

F. Prior to discipline, discharge or demotion as a result of unsatisfactory performance, an employee shall be given the reason, in writing, such action is to be taken.

G. Where the District determines that the nature of the offense is such that the unsatisfactory conduct or performance of the employee can be corrected and warrants continuance of employment, it shall so inform the employee, in writing, and provide the employee with an opportunity to correct the unsatisfactory performance.

H. Where the District determines that the nature of the alleged misconduct necessitates the removal of the employee from the workplace, the District will place the employee on paid administrative leave pending the outcome of the District's investigation..

I. The probationary period for newly hired employees will be six (6) calendar months. Termination of probationary employees shall not be subject to appeal unless there is a question of fact.

J. The District will not rely solely on information obtained through the utilization of GPS systems in order to discipline employees. The District agrees to provide introductory training and orientation to employees who drive vehicles equipped with a GPS device.

ARTICLE 12

NON-DISCRIMINATION

CCL

In administering the terms and conditions of this Agreement, the parties agree to comply with applicable State and/or Federal Statutes and/or regulations regarding nondiscrimination, i.e., on the basis of age, gender, religion, race, color, national origin, disability, marital status, sexual orientation, veteran status, union or political activity and association or other category protected by Federal, State or Municipal law. It is the expressed intent of the DCU, in executing this Agreement, that the Board and its designees shall retain sole control and direction over the District's compliance with such laws and/or regulations and that this Article shall in no way be interpreted as affecting the application thereof. The DCU shall use its best efforts to direct employees complaining of such discrimination to appropriate District administrative remedies. It is the intention of the parties that the interpretation given to this Article shall be consistent with the proper interpretation of the provision of the Oregon Fair Employment Practices Law contained in ORS 659A.321 and 659A.030.

ARTICLE 13

PERSONNEL FILE

A. Each employee shall have the right, upon request, to review the contents of their own personnel file in accordance with ORS 652.750. Only one official personnel file shall be maintained by the District for each employee.

B. A representative of the DCU or counsel for the employee may, at the employee's request, accompany them in this review. An employee may request that letters of warning and reprimand (excluding evaluations) be removed from their file after two (2) years, provided that no subsequent such entries have been made into that file. The District shall have a collaborative conversation with the employee and the appropriate District representatives (e.g. Department Manager and Human Resources) to discuss the request. The rationale for any denials will be provided in writing and placed in the employee's personnel file. Employees can make annual requests for removal after the final written decision.

C. The District shall provide an employee with a copy of any materials placed in their file. Materials placed in an employee's file shall bear the date of such placement. An employee may respond in writing within thirty (30) days to any material placed in such file, and the response shall become part of the file.

D. Anonymous materials shall not be placed in the personnel file.

ARTICLE 14

OVERTIME AND CALL BACK

A. OVERTIME

1. When overtime is necessary, the District will make every effort to solicit qualified volunteers first.
2. Overtime shall be work performed by an employee which is scheduled and approved by the District prior to the completion of, or beginning of, the employee's shift and is in excess of eight (8) hours in one day or forty (40) hours in one week. Overtime shall be compensated at time and one- half of the employee's hourly rate. The overtime rate shall also apply to work performed on Saturdays and Sundays unless such days fall within an employee's regular work week assignment.
3. An employee scheduled to work on their regular day off shall be guaranteed a minimum of four (4) hours of work.

B. CALL BACK

1. An employee called back to work after completing a shift shall be compensated at the greater of the following:

a. Overtime rate times actual hours worked (which shall include reasonable time of travel to and from their home, not to exceed twenty (20) minutes each way), or

b. Four (4) hours of straight time pay.

c. Employees shall have a minimum of eight (8) hours off duty following a call back before returning to work on a regular shift with no loss of pay. Employees who are required to return to work without such eight (8) hours off duty shall be paid at the overtime rate for all hours worked until such time as they have received eight (8) hours off duty.

2. If the employee is called back to work on their regular day off, the minimum provided in A.2 will apply.

3. An employee who is called after hours for work-related consultation shall be compensated one (1) hour at the overtime rate.

C. EXTENSION OF WORK YEAR

Work performed outside an employee's regular work year shall not be viewed as call back and shall not qualify for overtime unless it exceeds eight (8) hours in one (1) day or is performed on Saturdays, Sundays, or a holiday. The employee shall be guaranteed a minimum of four (4) hours straight time pay unless a different minimum is set forth in the applicable Appendix of this Agreement.

D. OVERTIME ON HOLIDAYS

An employee who works on a paid holiday (See Article 20) shall receive holiday pay plus their overtime rate for hours worked.

E. COMPENSATORY TIME

Unless the appropriate appendix provides otherwise, in lieu of pay, compensatory time off at the overtime rate may be specified by the District. However, time off or pay must be granted by the end of the next calendar month following the month in which the overtime was worked.

ARTICLE 15

LUNCH AND REST PERIODS

CCL

A. Each employee working more than four (4) hours per day shall be entitled to a minimum of one-half (1/2) hour duty free lunch period without pay.

B. Employees shall receive a fifteen (15) minute rest period during each four (4) hours of work not to exceed two (2) such breaks during a regular eight (8) hour day, whenever practicable.

ARTICLE 16

LEAVES

CCL

This article is intended to comply fully with the requirements of the Oregon Paid Sick Leave Law, Paid Leave Oregon (PLO), the Oregon Family Medical Leave Act (OFLA), and Federal Medical Leave Act (FMLA). Leaves provided under this Article are intended to meet the legitimate needs of employees. Any abuse of leave may be subject to the provisions of Article 11. When appropriate and lawful, the leave provisions in this Article 16 run concurrently with any leave protected by state or federal law.

A. SICK LEAVE

1. Employees who are employed on a regularly scheduled basis shall be entitled to sick pay on account of sickness at a rate equivalent to one (1) day per month, based upon the employee's scheduled work. The use of sick pay shall be limited to personal illness of the employee, including medical or dental appointments.

2. Employees who have completed one (1) full year of service with the District shall be accredited with the equivalent annual sick leave at the beginning of each fiscal or school year. Such advance credit is based upon one (1) day per month worked. If an employee uses the advance credit in excess of that which would be normal accrual and terminates employment, the District shall be entitled to recover from the employee's final paycheck, an amount of money equal to the amount paid for overused sick leave. Other employees shall be credited at the rate of one (1) day for each month worked. Employees working fifty percent (50%) of the month or more shall be accredited with a full day's sick leave. Accrual of sick pay shall continue during any period of absence paid by the District.

3. Sick leave days may be accumulated by employees only if not used in the year for which granted. Total sick leave which can be accumulated shall be unlimited.

4. When an employee has exhausted their accumulated sick leave credits, they shall be entitled, in the event of illness, to receive "reserve sick leave" in the amount of one (1) day for each year of service at two- thirds (2/3) of their daily rate of pay. Such additional allowance shall not accumulate and each year's allowance may only be used once. Employees must use the same leave request and prior notification procedures for reserve sick leave that applies for regular sick leave.

5. Employees shall not be credited with any sick leave days with respect to periods during which they are on an unpaid, unprotected leave of absence from work for the District of more than one (1) month duration; their accumulated sick leave shall not be charged with days of sickness during such leave; and they shall not be paid for days of illness during such leave except when the illness or injury is the factor which entitled the employee to the leave in question.

6. Employees who are absent four (4) or more consecutively scheduled workdays may be required to submit a physician's statement or other appropriate verifying documentation upon return to work.

7. The District will establish a Sick Leave Bank, for which the DCU may solicit voluntary contributions from employees of up to five hundred (500) hours per year for use by employees who have exhausted their sick leave. The guidelines for use of the Sick Leave Bank will be jointly developed by the District and the DCU which will include the following:

    a. Use of hours from the Bank shall only be approved in case of critical illness or injury of an employee.

    b. The employee must have exhausted all of their accumulated sick leave and vacation hours.

    c. To be eligible, an employee must have been employed by the District for two (2) years or more.

    d. Request for use of the Sick Leave Bank will be jointly approved by the DCU and the District. Requests of less than five (5) days or more than twenty (20) days will not be considered.

    e. The Sick Leave Bank will not be used in association with a worker's compensation claim.

    f. Employees' contribution to the Bank shall be for not less than four (4) hours nor more than one hundred (100) hours.

B. OTHER PAID LEAVES

An employee who is on an authorized paid leave as provided by this Section shall receive no loss of pay or benefits.

1. Family Illness

    a. All employees shall receive up to three (3) additional days per fiscal year with pay in case of illness of a member of the employee's immediate family. "Immediate Family" shall be interpreted to mean spouse, children, parents, grandparents, grandchildren, mother-in-law, father-in-law, brothers and sisters of the employee, and also any person living in the home with the employee (use of this leave shall be for instances where care or attention by the employee is necessary). In the event that emergency conditions arise, an extension of family leaves shall be determined upon the merits of the individual case by the Office of the Superintendent (or designee). Employees who commence employment after the end of the first semester shall be entitled to one-and-one-half (1.5) days of family illness leave. After utilizing the available days for family illness leave, the employee may charge against their accumulated sick leave when additional time is needed to provide care for a member of the employee's immediate family.

b. When an employee is laid off, accumulated sick leave will be frozen, and when the employee is recalled from layoff, such sick leave will be reinstated for that employee.

2. Absence Due to Quarantine or Isolation

An employee's absence from work because of quarantine or isolation to prevent the spread of a communicable disease by the appropriate public health official shall not be charged against the employee's sick leave and the employee shall suffer no loss in pay. Quarantine or isolation pay will not extend past the standard quarantine or isolation period established by the local public health authority, but in no event shall it exceed thirty (30) days.

To qualify for quarantine or isolation pay under this Section, an employee must be fully vaccinated (if a vaccine is available) as defined under guidelines set by the federal and state health authority, including any boosters.

3. Paid Leave Oregon (PLO) Top Off

a. Employees may, at their request, elect to top off PLO benefits up to 100% of the employee's average weekly wage (as defined by PLO) using other accrued paid leave balances when they apply.

b. If the employee elects to top off, the District will pay the top off directly to the employee in accordance with the District's usual practices for use of paid leave.

c. Any overpayment of top off must be repaid by the employee. In the event of such an overpayment, PPS will seek to adjust employee's leave balance to true up the top-off payment accordingly.

d. Employees who elect to top off will use leave balances towards the top off in the following order for the following conditions:

- 1. employee health condition: sick, personal, vacation (if applicable)
- 2. family health condition: family illness, sick, personal, vacation (if applicable)
- 3. maternity/parental: sick, personal, family illness, vacation (if applicable)

4. Funeral Leave

a. An employee shall be permitted an absence of up to one (1) day to attend the funeral of a relative or friend, although one-half day would generally be sufficient. When, in their opinion circumstances demand it, the Supervisor shall authorize two (2) days leave to attend the funeral of a relative.

b. An employee who is absent because of a death in their immediate family shall be permitted three (3) consecutive days (or in the case of spouse, parent or child, five (5) consecutive days) and two (2) additional days at two-thirds (2/3) of their scheduled salary. "Immediate Family" shall be interpreted to mean spouse, children,

parents, grandparents, grandchildren, mother-in-law, father-in-law, brothers or sisters. Any other person living in the home of the employee shall be considered as immediate family providing the employee was responsible for the care of such person. In the event of death in the employee's immediate family during the employee's vacation time, they shall be entitled to the funeral leave provided by this Section in addition to accrued vacation time.

5. Emergency/Personal Business Leave

Employees employed on a regularly scheduled basis shall be entitled to three (3) days leave per work year without loss of pay under the following circumstances:

a. In the case of unanticipated circumstances beyond the employee's control and for which prior planning cannot be made; or,

b. For attending to matters which cannot be scheduled outside the employee's work hours and for which the personal attention of the employee is required. In such cases, a request indicating the reason for the leave must be made to the responsible administrator at least twenty-four (24) hours in advance.

Such leaves shall not be used for recreation, other employment, union or political activities, or to extend other leave categories as provided by this Agreement, unless on approved Paid Leave Oregon (PLO), Federal Family and Medical Leave (FMLA) or Oregon Family Leave (OFLA).

6. Mandatory Court Appearances

a. An employee subpoenaed to appear as a court witness shall be excused from their work assignment without loss of pay, provided that the employee shall submit any witness fee received to the School District Business Office along with a copy of the subpoena. In cases where the employee is a plaintiff or defendant to the action, absence will be without pay or, at the employee's election, emergency leave as provided in Paragraph 4. An employee required to appear in court as a co-plaintiff or co-defendant with the District shall be released without loss of pay.

b. An employee subpoenaed for jury duty shall be excused from their work assignment without loss of pay provided that the employee shall submit any jury fee received to the School District Business Office along with a copy of the subpoena. On days when the employee is excused from jury duty, they shall report to their work assignment provided four (4) hours or more of their workday remains at the time they are excused; and provided that length of time on jury duty prior to excuse and their work day with the District shall not exceed their normal workday.

C. UNPAID LEAVES

1. Special Leaves of Absence

Employees who have been continuously employed for two (2) or more years may apply for a special leave of absence without pay. The Superintendent (or designee) shall exercise

discretion in the granting of such leaves. Such leaves shall not exceed one (1) year without special authorization of the Board. Employees on such leaves shall not be permitted to engage in remunerative service without the approval of the Superintendent (or designee). Leaves under this Section shall be consistent with the Oregon Family Leave Laws and the Federal Family and Medical Leave Act of 1993.

2. Child Care Leave

   a. An employee covered by this Agreement shall be eligible for a child care leave (maternity, paternity or adoption) for up to six (6) months. The District may, upon written request, extend such leave for additional periods of time.

   b. An employee who returns to duty following a child care leave shall be entitled to any step increases received by other employees within their classification provided they were continuously employed for at least one-half (1/2) of their designated work year immediately prior to beginning the leave.

   c. The District shall retain full control and authority to establish policies and regulations in accordance with State statutes, regarding the administration of maternity and child care leaves. Such policies and regulations may include, but not be limited to: application procedures, requirements for physician statements, return procedures, etc. Such policies and regulations shall not be considered as part of this Agreement.

3. Federal Family Medical Leave Act and Oregon Family Leave Act

Family medical leave shall be granted according to the provisions of Federal Family Medical Leave Act and Oregon Family Leave Act (FMLA and OFLA). If there is a conflict in the two (2) statutes, the employee gets the greater benefit.

The District may require employees to utilize all accrued paid leave if on an approved FMLA/OFLA leave of absence.

4. Military Leave

The District shall be solely responsible for the establishment of a military leave policy required by state and federal law including ORS 408.210 through 408.290.

D. RETURN FROM LEAVE

Employees who are on an approved leave shall have the right to return to their position within twelve (12) calendar months providing the position continues to exist. Employees who are hired to replace an employee on an approved leave shall be considered as a temporary employee.

ARTICLE 17

INSURANCE

A. HEALTH AND WELFARE TRUST

1. The District shall contribute to the School District No. 1 Health and Welfare Trust, the cost of full time bargaining unit members and their dependents and domestic partners participating in the insurance plans of the Trust.

   a. Effective January 1, ~~2024~~ 2026, the District shall contribute to the School District No.1 Health and Welfare Trust, a contribution not to exceed ~~$1,570.00~~ $1,666.00 per participating full-time eligible employee, per month.

   b. Effective January 1, ~~2025~~ 2027, the District shall contribute to the School District No.1 Health and Welfare Trust, a contribution not to exceed ~~$1,616.00~~ $1,728.00 per participating full-time eligible employee, per month.

   c. All employee groups with the exception of employees covered by Appendices A and C, shall have the options available under the package provided by the School District No. 1 Health and Welfare Trust. Employees in Appendix A (Warehouse Workers and Truck Drivers) and Appendix C (Television Services) have negotiated to participate in the insurance plans offered by the Teamsters 206 Employers Trust.

   d. The employee's portion of the monthly premium shall be made through a "lump-sum" deduction from their paycheck. Should the appropriate tax codes allow, said deduction shall be made on a pre-tax basis upon proper authorization from the employee. Should the District's payroll system allow, said deduction shall be made on the employee's first (1st) paycheck of the month for which the contribution is made.

2. During the life of this agreement, should the District increase the health insurance contribution of SEIU, PFSP, ATU, or the unrepresented employees of the District, at the DCU's discretion, this Article may be reopened for further negotiation under the expedited bargaining rules.

B. WORKER'S COMPENSATION

All employees of the District are eligible for State workers' compensation benefits. For absence due to a compensable injury as defined in ORS Chapter 656, an employee shall retain the compensation check that they receive for time lost. The employee may supplement their compensation check with accrued accumulated sick leave. Coordination of Workers' Compensation benefits and Sick Leave Benefits shall be in accordance with applicable state regulation. For the purpose of this Paragraph, it shall be considered that an employee's "regular check" paid in a particular payroll period is for services during all that payroll period. For instance, a monthly check paid in August equaling one-twelfth (1/12) of the employee's annual salary shall be deemed compensation for services during August so that workers' compensation benefits received with respect to all or part of that month would be deducted from the amount regularly payable as compensation from the District for such month. Employees who are absent due to an on-the-job injury shall continue to accumulate vacation credits.

ARTICLE 18

SAFETY

CCL

A. SAFETY

1. The District shall maintain safe working conditions in accordance with established federal and state regulations. The District and employees covered under this Agreement should work to avoid or minimize hazards.
2. The parties agree to comply with Oregon OSHA regulations.
3. SAFETY FOOTWEAR. The District will pay an allowance of $200 per fiscal year to each employee who is required by the District to wear safety footwear when performing their regular work duties.

Definition: safety footwear shall mean safety shoes and boots that meet the most current ASTM standard that provides both impact and compression protection (currently ASTM F2413-18).

B. PHYSICAL EXAMINATIONS

1. In the interest of safety and the wellbeing of students, employees and the public, the District and the DCU and its affiliated unions agree to the objective of a substance free workplace. The District, at its discretion, may require that new employees have a medical examination including substance testing.
2. Such examination of a current employee(s) may also be required:
   a. When supervision has reason to suspect employee conduct in violation of this drug and alcohol policy. Reasonable suspicion may be based on observations that the employer can describe, such as appearance, behavior, speech, breath odor, bodily symptoms, paraphernalia, or such other reasonable and responsible reason.
   b. In the event of direct involvement or possible involvement in any type of accident or near- accident in which it can be shown that the employee's behavior, judgment, actions, or lack thereof reasonably contributed to the accident or potential accident, injury, or damage to property or equipment.
3. The District will comply with the Omnibus Testing Act of 1991 and will pay for post-accident, random, re-employment, and reasonable suspicion abuse testing. Before implementing random testing, the District will notify DCU and engage in bargaining upon request by DCU.

C. PROPERTY LOSS

The District shall reimburse employees for loss of personal property, excluding the employee's automobile, which occurs while the employee is on duty under the following circumstances:

1. When the loss is a result of any unwarranted assault on the employee's person suffered

while on duty.

2. Property stolen by the use of forcible entry on a locked container. Reimbursement shall be at replacement costs (not exceeding actual cost) less any insurance or worker's compensation reimbursement. Reimbursement shall not be made for losses less than five dollars ($5.00) or that portion in excess of four hundred dollars ($400.00) and shall not be made when carelessness or negligence on the part of the employee was evident.

   Employees shall cooperate and support the District in its investigation and resolution of any reported loss. The District will provide assistance in attempting to investigate and/or reclaim other stolen or damaged personal property including automobiles.

D. FINGERPRINTING

The District will pay for the costs of record checks and fingerprinting of existing employees as required by state law.

ARTICLE 19

REDUCTION OF STAFF

CCL

A. The District will consider all available alternatives prior to considering staffing reductions, including transfer to a vacant position provided the employee meets the minimum qualifications for the position. In the event the District determines a staff, classification, or employee group reduction becomes necessary, the District will release personnel in the inverse order of their length of service but may give consideration to special qualifications and experience, and minority employment. In the absence of such considerations and exemptions, layoff shall be based on seniority.

B. Notice to DCU. The District will provide DCU as much advanced notice as practicable of anticipated reductions. The District will meet with DCU within five (5) working days following the notice of anticipated reductions. Upon request, the District will provide a current seniority list and copies of any non-privileged materials relied upon to determine the necessity of a reduction.

C. Notice to Employee(s). The District will provide at least two (2) weeks written notice of layoff to each employee to be laid off under the provisions of this Article and will provide a copy to DCU. If an employee receives less than two (2) weeks advanced notice before the layoff date, the District will compensate the employee in an amount equal to the base wage the employee would have earned for the remainder of the two (2) week period had the layoff not occurred. This provision applies only to regular employees.

D. Reductions shall be accomplished within employee classifications which are within employee groups. For the purpose of this Article, an employee group shall be considered as a category of employees, such as carpenters. An employee classification is a level of

assignment within that group, such as foreperson. Reductions shall be by seniority within a classification; however, the District may assign employees from a higher classification to a lower classification within an employee group. The District shall not assign employees to a lower salary level without a corresponding change in job assignment or responsibility.

E. Employees who have received a written notice of layoff may apply to any open and vacant position(s) in the District.

F. An employee who rejects an assignment of equal pay and classification shall, by doing so, forfeit all rights under this Article. An employee offered an assignment of lower classification and salary, due to staff reduction, may elect layoff and retain the recall rights provided by this Article.

G. An employee who is terminated due to such reduction in staff shall have preference in filling positions within their employee classification and shall be recalled by the District for employment in such classification based upon seniority with the District; provided, however, they are qualified for the assignment. Employees so terminated shall retain such right of recall for a period of two (2) years from the date of termination. The District will email and mail recall notices by certified mail to the last addresses reflected in the employee's official personnel file. Recalled employees must indicate their acceptance in writing within five (5) business days following receipt of the notice of recall. Employees so recalled by the District shall be reinstated with seniority rights accumulated as of the date of their termination. Any employee recalled by the District for a position comparable to the one from which they were terminated and who rejects such an assignment shall relinquish all rights provided in this Article and Agreement.

H. By May 30, the District shall attempt to notify employees, whose work years correspond with the school year, of the intended employment status with the District for the following school year. Failure by the District to provide such notice of changes in staffing plans following issuance of notification will not interfere with the authority of the District to reassign or terminate an employee.

I. This Article shall not apply to employees hired on a temporary basis. A temporary employee is one who is hired to fill a position with a duration of six (6) consecutive months, or less, or to replace a regular employee on an approved leave of absence or absence due to an on-the-job injury.

J. A regular employee laid off in accordance with this Agreement who is employed elsewhere will not forfeit future recall rights by declining reemployment with the District when the anticipated period of work is less than ninety (90) calendar days. An employee who does return to work for a short-term assignment of less than ninety (90) calendar days will not accrue additional seniority.

K. See the individual appendices for additions and/or exceptions to this Article.

L. All temporary employees, including retirees continuing to work, shall be terminated before any full- time employees are laid off within classification.

ARTICLE 20

VACATIONS AND HOLIDAYS

A. Employees who are employed on a twelve (12) month basis shall accrue vacation with pay on a monthly basis as follows*:

Completed ~~Years~~ Months of Service	Annual Vacation (days)	Rate of Monthly Accrual
~~2 years and less~~ 0 - 35 months	10 days	6.7 hours
~~3 - 6 years~~ 36 - 83 months	15 days	10.0 hours
~~7 - 10 years~~ 84 - 131 months	18 days	12.0 hours
~~11 - 14 years~~ 132 - 179 months	20 days	13.4 hours
~~15 years and above~~ 180 months and beyond	22 days	14.7 hours

*Vacation days and rate of monthly accrual are awarded on the first day of the next month they are earned.

Employees shall accumulate vacation credits at the appropriate above monthly accrual rate following completion of each month worked. For employees with dates of hire after the first working day of a month, accrual shall begin (and/or be increased to the next step) the following month. For the purpose of this Article "month worked" shall mean on-the-job time, vacation time and authorized paid leave. New employees shall be eligible to take vacation upon successful completion of their probationary period. Exceptions may be made upon approval of the employee's supervisor. However, at no time shall an employee take paid vacation against time not yet earned.

Vacation requests must be submitted to an employee's supervisor at least seven calendar days in advance, and vacation requests are subject to supervisory approval. A supervisor may require that vacations be scheduled at a time least disruptive to the department to which the employee is assigned.

The number of days carried over at the end of each calendar year shall not exceed two (2) years' accrual, any overage will be lost. An employee who has scheduled vacation and is prevented by the District or workers' compensation compensated injury from taking their scheduled vacation, and because of a change in the fiscal year would lose accrued vacation hours, shall be allowed to reschedule the vacation period within a reasonable time.

An employee who occupies a position having a work year of less than twelve (12) months and who transfers to a 12-month assignment may count the time employed in the previous assignment as qualifying for vacation allowance. The basis for this allowance shall be the number of days worked in the previous position divided by a 21.75 day calendar month. This number will be converted to years of service and the employee shall commence to accrue vacation credits at the monthly rate shown above.

This Section shall not apply to employees hired on a temporary basis.

B. HOLIDAYS

1. Regularly employed 190-192-200-210 day employees shall receive the following paid holidays:

Labor Day

Veterans' Day

Thanksgiving Day

New Year's Day

Presidents' Day

Memorial Day

Martin Luther King's Birthday

Regularly employed 12-month employees shall receive the above days and, in addition, shall receive Juneteenth, Independence Day, and Christmas Day. Holiday pay is included in the monthly annual salary of salaried employees. In calendar years where there are 261 work days, the day after Thanksgiving shall be designated as a non-work, non-paid day on the District 260 Work Year Calendar. Regularly employed hourly employees shall receive full pay for holidays. Employees who do not regularly work year-round shall receive Juneteenth and Independence Day if they work the regular business day before and the regular business day after the observed holiday.

2. Employees shall receive holiday pay provided the holiday falls on a scheduled workday of an employee and that the employee worked or was on an authorized paid leave the

nearest scheduled workday immediately preceding and following the holiday.

3. The District reserves the right to change the days designated as paid holidays provided that in so doing it does not reduce the number of paid holidays. Thirty (30) days prior to implementing such change, the District shall notify the DCU of the reasons therefore and provide opportunity for consultation.

4. Employees who are members of a religious faith may use the leave provisions of Article 16.B.5 for participation in religious observances when such participation during the workday is required by that faith.

ARTICLE 21

COMPENSATION

Effective ~~July 1, 2024,~~ January 1, 2027 a two percent (2%) ~~an~~ increase shall be applied to the wage rates of all the classifications covered by this Agreement. ~~in the amount of $2.13 per hour.~~

On July 1, ~~2025~~ 2027, a ~~four percent (4.0%)~~ two percent (2%) increase shall be applied to the ~~salaries~~ wage rates of all the classifications covered by this Agreement.

On December 1, 2027, a one point eight percent (1.8%) increase shall be applied to the wage rates of all the classifications covered by this Agreement.

BONUS PAY PROGRAM

The District may implement a bonus pay program for a group of employees (such as employees assigned to a particular school) to receive additional compensation above their normal wage or salary rates based on the group's successful completion of goals specified in advance by the District. Nothing in this Agreement precludes bargaining unit members from participating in the program or receiving the bonus pay subject to any provisions in the applicable Appendix.

SCHOOL YEAR

The Board retains the right and authority to change the days on which school shall be held and to make any adjustments to the work year. In the event of adjustment to the work year, the District shall consult with the DCU before implementing any change, and the salaries set forth in this Agreement shall be adjusted for the added or deleted days on the basis of the employee's daily rate under said salary schedules.

PERSONAL VEHICLES

Employees who are required to use their personal vehicles for travel on behalf of the District during on- duty time shall be reimbursed by the District. The District may require as a condition for reimbursement that the employee provide a certificate of insurance showing that the employee has basic liability coverage equal to or greater than minimum amounts required by District policy or

regulation. Reimbursement shall be at the rate established by the Internal Revenue Service.

PAYCHECK ON TERMINATION

The District will issue a paycheck on the next regularly scheduled payday to an employee covered by the DCU Agreement who resigns from their position. The final paycheck will be available to the employee by the first business day after the last day of work in the event of discharge or layoff.

SCHOOL CLOSURES

On scheduled workdays, if the District decides to close or delay opening, employees can use Emergency Leave pay or Vacation pay in lieu of unpaid leave unless employees have no such leave available. When employees report to work due to failure of the District to notify employees or delayed notice of closure, employees reporting to work shall receive at least one-half day of compensation.

ARTICLE 22

DURATION

A. Except as may otherwise be provided for in this Article, this Agreement shall become effective as of the date it is signed by the parties and shall continue in effect through 11:59 pm, December 31, ~~2025~~ 2027.

B. The parties agree to enter into successor negotiations no later than ~~September 15, 2025~~ August 1, 2027.

C. Should there be an intervening change in the law which would significantly reduce the District's revenue, and thus, its fiscal stability below the level being planned for at the time of the execution of this Agreement, the parties agree to reopen the negotiations on salaries and other economic benefits established by this Agreement.

D. In the event that under applicable laws, some other method of representation or some other applicable representative for employees is elected, this Agreement shall not terminate, but shall be fully binding according to its terms upon any and all employees or successors to the DCU as exclusive representative of employees or portion thereof, except as to representation of employees for whom the DCU remains the exclusive collective bargaining representative by law, such event shall terminate the rights and authority of the DCU under this Agreement.

APPENDIX A

SALARY SCHEDULE FOR WAREHOUSE WORKERS AND TRUCK DRIVERS

THE WAGE RATES FOR JOURNEYMEN WAREHOUSE WORKERS AND TRUCK DRIVERS SHALL BE:

	HOURLY RATE		
	January 1, 2027	July 1, 2027	December 1, 2027
Warehouse Worker	$22.58	$23.03	$23.45
Warehouse Worker/Truck Driver	$33.34	$34.01	$34.62

1. Rates for Leadperson, Foreperson and General Foreperson when assigned by the District will be as follows:

   Leadperson: Truck Driver/Warehouse Worker rate plus three percent (3%)

   Foreperson: Truck Driver/Warehouse Worker rate plus ten percent (10%)

   General Foreperson: Truck Driver/Warehouse Worker rate plus fifteen percent (15%)

2. A Warehouse Worker assigned responsibility for the Food Service Department's cold food storage shall receive Truck Driver/Warehouse Worker rate plus five percent (5%).

3. An employee substituting in, or temporarily assigned to, a higher classification for two (2) hours or more shall be paid at the rate of the higher classification.

4. Present employees will be given the opportunity to apply for vacancies in the department to which they are assigned. The most senior employee who meets the qualifications for the position will be assigned to the vacancy. Upon selection, employees will serve a 90-day trial service period in the new assignment. During the trial period, if the employee's performance is unacceptable, the employee and their supervisor will meet to discuss. If the employee is unsuccessful, or chooses, upon completion of the 90-day trial period, the employee will be returned to their former position. Employees in other departments so requesting will be interviewed and considered to fill vacancies prior to considering outside applicants. The District reserves the right to appoint to Lead and Foreperson positions.

5. Except in an emergency, twenty-four (24) hours advanced notice shall be given for any required overtime. Employees shall be given the opportunity to sign up for scheduled overtime. Such work shall then be assigned to the most senior worker(s) who signed up providing they are qualified. If no worker signed up, the work shall be assigned to the

worker with the least seniority who is qualified.

6. Seniority shall be based on length of continuous employment by the District as a driver and/or warehouseman under this Appendix. In the event of a layoff, the District will release personnel in the inverse order of their seniority. When filling a regular vacancy, the District will recall by seniority. The District will follow the provisions outlined in Article 19 of this contract. Laid off employees shall have the right to refuse work of less than thirty (30) days duration without affecting their rights of recall provided under Article 19 and this Appendix. A Leadperson and Foreperson shall be considered as a separate classification provided they have been in a Leadperson/Foreperson assignment for a minimum of one (1) year.

7. When the District has twenty-four (24) hours advance notice of available work on a previously unscheduled day, meaning at least one eight-hour shift, the District shall make a good faith effort to contact the most senior employee on the department's seniority list for such available work.

8. An employee who is hired into a full-time position (eight (8) hours per day) will be guaranteed full- time work (eight (8) hours) on each day worked.

9. Prior to hiring temporary workers, any extra work during school recess periods, such as winter, spring and summer breaks, shall be offered to those employees whose regular work year coincides with the school year, providing they are qualified. This, however, shall not prevent the District from the practice of providing temporary employment opportunities for students.

10. The District shall inform Teamsters Local #206 of any new hires, in accordance with Article 4 Section H.

11. The District has the right to subcontract out bargaining unit work and/or work currently being performed by members of the bargaining unit. Subcontracting shall not be defined to include the District's past practice and present methods of operation. However, no work that involves the warehousing of District supplies will be outsourced. The District retains the unlimited rights, among others, to direct ship from vendors and to lease out warehouse space. If an employee(s) will be laid off as a result of District action and if the union so chooses, the union may provide the District with information about the economics and productivity of the specific action being contemplated. In addition, the union may demand that the District bargain over the impact of the decision on such employee(s).

12. When employees covered in this Appendix are working less than eight (8) hours in a scheduled work day, such as Nutrition Services summer work, employees will follow Bureau of Labor and Industries break and lunch rules.

13. If, during the life of this Agreement, District upgrades of its computer and records systems make it administratively and financially feasible to implement a weekly payroll period for employees covered under this Appendix A, then the parties will engage in discussions about implementation.

14. Employees working under Appendix A will be paid on a weekly basis.

HEALTH INSURANCE

All provisions of Article 17 – Insurance shall apply to employees covered by this Appendix A except as specifically modified herein. The parties agree employees covered by Appendix A shall be covered by the Teamsters 206 Employers Trust for Plan AAVR or any plan offered by the Trust. The parties agree that the provisions of Article 17.A.1.a. pertaining to Insurance contributions into the School District Health and Welfare Trust shall not apply to the employees covered by this Appendix.

A. The parties agree that the provisions of Article 17.A.1. concerning the amount of the District's contribution, the composite rate per full time eligible employee covered by this Appendix and the definition of full-time and part-time employees as well as the contribution formula for each shall continue to apply to the employees covered by this Appendix although said contributions shall be made to the Teamsters 206 Employers Trust for the Trust's Plan AAVR or any plan offered by the Teamster Trust.

B. Contributions shall be made on active employees, eligible retirees and their eligible spouse/same sex domestic partner. No contributions will be required for individuals who no longer work for the District regardless of the reason for separation except in the case of an individual whose discharge is reversed through Article 10 – Grievance Procedure.

C. Any employee portion of the monthly contribution may be made on a pre-tax basis provided appropriate regulations allow.

APPENDIX B

SALARY SCHEDULE FOR BUS MECHANICS

THE WAGE RATES FOR BUS MECHANICS SHALL BE:

HOURLY RATES

	January 1,2027	July 1, 2027	December 1,2027
Lead Mechanic	$42.59	$43.44	$44.22
Mechanic	$41.41	$42.24	$43.00
Serviceman	$32.69	$33.34	$33.95
Bus Fueler	$32.69	$33.34	$33.95
Shop Assistant	$25.40	$25.91	$26.37

* Reflects increase of Mechanic and Lead Mechanic rate to same as Machinist and Lead Machinist.

HOURS OF WORK AND OVERTIME

Work performed in excess of eight (8) hours per day or forty (40) hours per week shall be paid at the overtime rate of time and one-half (1½ x) the employee's straight-time hourly rate of pay.

When so selected by the District, a second/"swing" shift may be established provided the employees and the local union are given ~~one weeks'~~ one-month's notice of the change.

TOOL ALLOWANCE

Following completion of one year of service, school bus Mechanics will receive a tool allowance of $500.00 per year. It is the shared expectation of both the District and the Union that the tool allowance will be used to purchase quality tools, for use at work. The District will purchase and retain ownership of any required specialty tools.

REIMBURSEMENT FOR STOLEN TOOLS

Where tools and boxes are stolen by the use of forcible entry, reimbursement shall be at replacement costs (not exceeding actual cost) less insurance or workers' compensation reimbursement. Reimbursement shall not be made for losses less than five dollars ($5.00) or that portion in excess of one thousand dollars ($1,000.00) and shall not be made when carelessness or negligence on the part of the employee was evident.

HIGHER CLASSIFICATION PAY

Except for on-the-job training purposes, whenever an employee is required to perform any work for more than four (4) hours (per workday) in a classification above that in which the employee is normally classified, the employee shall be paid for such work at the higher classification rate.

It is understood and agreed that an employee may occasionally or intermittently, for short periods of time during their shift, perform duties which are normal to higher-level classification. Occasional performance of such duties is not to be considered subject to this section.

PROFESSIONAL CERTIFICATIONS

In those positions where the District (Transportation) determines Professional (ASE) Certifications are desired, the District will advise the involved employees.
If the employee obtains the agreed upon certifications, the District will pay an annual incentive bonus of $100.00 per current certification. The time and cost to obtain the certifications is the sole responsibility of the employee.

DRIVING OF SCHOOL BUSES

Mechanics will not be required to drive a school bus, for the purpose of transporting students to and from school, unless all other District transportation options have been exhausted.

APPENDIX C

SALARY SCHEDULE FOR TELEVISION SERVICES

THE WAGE RATES FOR TELEVISION SERVICES SHALL BE: HOURLY RATES

	January 1,2027	July 1, 2027	December 1,2027
Chief Engineer	$41.96	$42.80	$43.57
Assistant Engineer Production Manager	$44.46	$45.35	$46.17
Effective January 1, 2020, the Production Manager will be aligned with the Electronics Technician classification in Appendix D.			
Producer			
Master Control Operator			
TV Technician			
Step 5	$33.92	$34.59	$35.22
Step 4	$30.75	$31.37	$31.93
Step 3	$27.62	$28.17	$28.68
Step 2	$24.42	$24.91	$25.36

	Step 1	$21.28	$21.70	$22.09
Production Assistant				
	Step 5	$30.72	$31.34	$31.90
	Step 4	$27.92	$28.48	$28.99
	Step 3	$25.04	$25.54	$26.00
	Step 2	$22.21	$22.65	$23.06
	Step 1	$19.33	$19.72	$20.07

PROGRESSION

Production Assistant, Producer, Master Control Operator and TV Technician are considered as "journey level" positions. Training Progression levels shall be at sixty percent (60%), seventy percent (70%), eighty percent (80%) and ninety percent (90%) of the "journey level" rate. Advancement, such as from 60% to 70%, 70% to 80%, etc., shall occur at six (6) month intervals provided the employee has demonstrated satisfactory performance and development towards achieving "journey level" competency. In the event an employee is not to be advanced, the District shall so inform the employee in writing setting forth the reasons. A copy shall be provided to the DCU.

NEW HIRES

Newly hired employees within the Production Assistant, Producer, Master Control Operator, and TV Technician classifications shall be placed in the progression schedule based upon their experience and qualifications as determined by the District.

TRANSFERS AND PROMOTIONS

A. Transfers
   In the event of a position opening, the District will give consideration to qualified current employees wishing to transfer between classifications.
B. Promotions
   In the event of a position opening, the District will give consideration to qualified current employees wishing to be promoted to a different classification.

HEALTH INSURANCE

All provisions of Article 17 – Insurance shall apply to employees covered by this Appendix C except as specifically modified herein.

The parties agree employees covered by Appendix C shall be covered by the Teamsters 206 Employers Trust for Plan AAVR or any plan offered by the Trust as soon as practicable after ratification of the DCU contract.

The parties agree that the provisions of Article 17.A.1.a. pertaining to Insurance contributions into the School District Health and Welfare Trust shall not apply to the employees covered by this Appendix.

The parties agree that the provisions of Article 17.A.1. concerning the amount of the District's contribution, the composite rate per full time eligible employee covered by this Appendix and the definition of full-time and part-time employees as well as the contribution formula for each shall continue to apply to the employees covered by this Appendix although said contributions shall be made to the Teamsters 206 Employers Trust for the Trust's Plan AAVR or any plan offered by the Teamster Trust.

Contributions shall be made on active employees, eligible retirees and their eligible spouse/same sex domestic partner. No contributions will be required for individuals who no longer work for the District regardless of the reason for separation except in the case of an individual whose discharge is reversed through Article 10 – Grievance Procedure.

Any employee portion of the monthly contribution may be made on a pre-tax basis provided appropriate regulations allow.

APPENDIX D

SALARY SCHEDULE FOR MAINTENANCE WORKERS

HOURLY WAGES FOR MAINTENANCE WORKERS SHALL BE AS FOLLOWS

HOURLY RATES

CLASSIFICATION	January 1,2027	July 1, 2027	December 1,2027
Brick Mason	$39.38	$40.17	$40.89
Carpenter	$41.30	$42.13	$42.88
Carpet and Linoleum Layer*	$32.37	$33.02	$33.62
Cement Mason	$35.61	$36.32	$36.97
Electrician	$49.15	$50.14	$51.04
Glazier	$38.41	$39.18	$39.89
Laborer	$32.37	$33.02	$33.62
Landscape Laborer *	$32.37	$33.02	$33.62
Locksmith	$38.65	$39.42	$40.13
Machinist	$41.41	$42.24	$43.00
Painter *	$32.37	$33.02	$33.62
Plasterer	$35.73	$36.45	$37.10
Plumber	$48.87	$49.85	$50.74
Roofer *	$32.37	$33.02	$33.62
Sheet Metal Worker			
	$44.87	$45.77	$46.59
Steamfitter	$48.87	$49.85	$50.74
Tile Setter	$33.72	$34.40	$35.01

* Same rate as Laborer

OTHERS

CLASSIFICATION	January 1,2027	July 1, 2027	December 1,2027
Mason Tender *	$32.37	$33.02	$33.62
Plumber's Helper *	$32.37	$33.02	$33.62
Electronic Technician (90% of Electrician)	$44.24	$45.12	$45.93
Music Repair Technician 1	$44.46	$45.35	$46.17
Music Repair Technician 2	$51.51	$52.54	$53.49
Machinist Helper (86.5% of Machinist)	$35.82	$36.54	$37.20
Building Automation Specialist (same as Steamfitter)	$48.87	$49.85	$50.74
Physical Security Technician	$51.51	$52.54	$53.49

Employees assigned as Corrosion Technician, Fire Sprinkler Technician, and Backflow Technician shall receive an additional three percent (3%). If another employee is assigned work orders or tasks for Corrosion, Fire Sprinkler or Backflow Prevention, they shall receive an additional three percent (3%) for the hours worked on these tasks. Work must be clearly documented in the employee's work order at the end of every day.

WAGES AND HOURS

1. Rates for Leadperson, Assistant Foreperson, and Foreperson when assigned by the District will be as follows:

Leadperson	=	Journeyman rate plus 3%
Assistant Foreperson	=	Journeyman rate plus 6.5%
Foreperson	=	Journeyman rate plus 10%

   A. In the event that there are more than three (3) tradespersons in the multi-craft shop, the District shall assign a ~~lead worker~~ Leadperson at the journey-level rate plus three percent (3%).

   B. In the event that there are more than three (3) employees assigned to work together, the District shall assign a ~~lead worker~~ Leadperson at the journey-level rate plus three percent (3%).

2. Asbestos Abatement Work: The District will pay maintenance employees qualified and trained to remove asbestos at the following premium rates under the following conditions:

- A Maintenance employee who has the required DEQ Supervisors certification will receive a certification premium in the amount of $10.00 per hour worked when assigned by the District to lead a crew of more than three (3) maintenance employees assigned to perform asbestos abatement.

- A Maintenance employee who is qualified and trained to perform asbestos abatement under this Section will receive a certification premium in the amount of $6.00 per hour for asbestos abatement work assigned by the District.

    - The primary intent of this work is to remove, repair, encapsulate or enclose friable asbestos material that requires a Class I or II OSHA certification to perform; or

    - for the removal of up to forty (40) linear or eighty (80) square feet, by glove bagging of friable asbestos material, limited to thermal system insulation, ceiling and wall material, and surface material, as allowed by OSHA and DEQ rules. No such premium for asbestos abatement will be paid when alternate methods to glove bagging are permissible for asbestos abatement by OSHA and DEQ rules and the District has determined to be an appropriate method of asbestos abatement; or

    - for the removal of non-friable asbestos containing materials, limited to vinyl asbestos tile, cement asbestos board, and built up roofing, using methods that are permissible for asbestos abatement by OSHA and DEQ~~U~~ rules and the District has determined to be an appropriate method of asbestos abatement.

- No Premium will be paid when the abatement of asbestos is de minimis.

- Maintenance employees are required to submit all documentation related to the abatement work, such as procedure checklist, air samples and associated forms.

3. Workers performing work in a higher paid classification shall receive a minimum of two (2) hours, or actual hours worked if over two (2), pay at the higher rate for work in the higher classification. The District agrees to pay employees in the higher classification when the work to be performed is preapproved and identified by the District (Sr. Manager or

Director) that such work is in fact in the higher classification.

4. Eight (8) hours shall constitute a standard workday. Five (5) days, Monday to Friday, shall constitute a standard workweek.

5. The standard workdays shall be eight (8) consecutive hours set by the employer between the hours of 6:00am and 5:00pm with a minimum thirty (30) minutes unpaid lunch break. Standard shifts starting times may be changed upon thirty (30) days' notice.

6. When so selected by the employer, a second, or "swing" shift may be established provided employees are given ~~one week's~~ thirty (30) days' written notice of shift changes, unless the affected employees and the DCU agree to waive such notice.

7. The standard second or "swing" shift shall be eight (8) consecutive hours between the hours of 12:00 noon and 12:00 midnight. Workers on the second or "swing" shift shall receive eight (8) hours' pay at the regular rate plus ~~One Dollar and Six Cents ($1.06)~~ one dollar and fifty cents ($1.50) an hour for eight (8) hours' work which shall include a thirty (30) minute employer-paid lunch period.

8. In the event an employee must work overtime, the employee shall be compensated at the overtime rate. There will be no comp time. Overtime shall be paid at the rate of one and one-half (1½x) times the regular rate of pay, except for Sundays and holidays, which shall be paid double (2x) the regular rate.

9. It is recognized by the parties that productivity and attendance are related issues and, therefore, have a joint interest in cooperating to improve both.

TRAINING PROGRAM

The DCU, through its affiliated unions, will cooperate with the administration of the District in reducing costs by the employment of apprentices through the apprenticeship programs of the appropriate union, up to the journeyman/apprentice ratio established by that union. The District will work with existing apprenticeship programs. The District will contribute to apprenticeship training programs for those trades in which the District has apprentices actively employed. Selection of apprentices by the District shall be done in consultation with the affected union.

OPTIONAL 10-HOUR DAY, 4-DAY WORK WEEK

The District may find it desirable to effect a 10-hour, 4-day workweek with all or some of the maintenance workers on all or some shifts. Before implementing such a schedule, representatives of the District and the DCU shall meet and agree upon the conditions of such a schedule.

EMERGENCY STANDBY

A worker, who agrees and is designated to be on call during evenings, weekends or holidays to meet emergency situations, shall receive one (1) hour of pay for each day they are on call.

INCLEMENT WEATHER

1. If the District closes all schools and offices ("all-District closure day"), maintenance employees are expected and required to report for and work their full shift unless an individual maintenance employee is specifically and individually informed by the District that they cannot report or must leave their shift early. Maintenance employees that are on medical leave, emergency personal/business leave, vacation or any other leave provided under the collective bargaining agreement or protected by law will not be required to report to work.
2. If an individual maintenance employee is unable to report due to unsafe weather conditions, that maintenance employee must inform their supervisor and will be required to use vacation, emergency personal leave or unpaid leave to cover all hours not worked on that day.
3. A maintenance employee who works during an all-District closure day will be compensated in line with their usual compensation, as governed by the collective bargaining agreement for all hours worked during all-District closure days.

TOOLS

If a worker is required to use their personal tools while on duty with the District, the District shall replace any tool loss providing the worker has filed a tool inventory list with, and approved by, the Maintenance Supervisor and the loss is not a result of carelessness or negligence on the part of the workers.

CONTRACTING REFERENCE

A. Prior to awarding a public contract for the construction of a new facility or a major renovation or addition to an existing facility, the District shall give advance notice thereof

to DCU. The District and DCU agree to discuss the possibility of a project labor agreement in the event that the District plans a project that is large enough or complex enough to make a project labor agreement beneficial and lawful.

B. All work that is contracted for by the District shall be subject to appropriate BOLI regulations including ORS Chapter 279 and OAR Chapter 839. The parties acknowledge that the District may need to use a competitive bidding process to consider subcontracting work other than that described in paragraph A if the work can be performed more efficiently or cost effectively by a contractor. That includes maintenance work and other work that has historically been performed by bargaining unit members. The primary reason for this subcontracting is not to undercut the wage and benefit package contained in this Agreement. If the District intends to subcontract such work, prior notice will be given to DCU. Subcontracting of such work is allowed provided that the employees of the contractor who hold positions comparable to those described in this Agreement receive an hourly compensation package (including wages, insurance and retirement) that is comparable to the hourly compensation package described in this Agreement for those positions. The only classifications subject to this requirement are those recognized by the Oregon Bureau of Labor and Industries. A comparable compensation package is established by:

   a. Being a signatory to the appropriate craft Master Labor Agreement; or,

   b. Paying the "prevailing wage" as determined by the Oregon Bureau of Labor & Industries; or,

   c. Other equally reliable proof.

   Furthermore, the contractor must agree to provide reasonable information to the District and the DCU to allow an audit of compliance with the provisions of this paragraph.

MEMORANDUM OF AGREEMENT

This Memorandum of Agreement ("MOA") is between the District Council of Unions ("DCU") and Portland Public Schools ("PPS") hereafter the ("Parties"). This MOA has the full force and effect of language in the Collective Bargaining Agreement and may be modified only upon agreement by the Parties and approval of the PPS Board of Education. This MOA sets forth the terms and conditions for a 4x10 workweek trial for specific titles within Appendix D.

Trial Objective

The trial will be twelve (12) months and is designed to enhance productivity, increase work-life balance, and optimize resources.

Trial Period

The trial will begin thirty (30) days after ratification of the Collective Bargaining Agreement (July 5, 2026), and end on the 261st work day following ratification (one full calendar year). The Parties agree to meet quarterly during the trial period to evaluate trial progress. During the quarterly meeting, the Parties will discuss if additional classifications may be added to the trial. The quarterly meetings will be ~~April 4, July 10,~~ July 5, October 2, December 30, 2026, and #4 TBD. The Parties will work together if any of the quarterly meetings need to be rescheduled.

Employee Eligibility

All four (4) employees who hold the title of Sheet Metal Workers are required to participate in the trial. The Sheet Metal Foreperson will initially work the 5x8 shift for the first six (6) months and may convert to the 4x10 shift for the second six (6) months of the trial at the District's discretion.

All eligible employees are expected to participate for the entire duration of the trial. Requests to return to a 5x8 shift prior to the end of the trial will be considered by PPS and granted at the District's discretion.

Shifts

Shifts will be Monday - Thursday and Tuesday - Friday with the hours of 5:00am-3:30pm with a thirty (30) minute unpaid lunch period. There will be a minimum of two (2) employees assigned to each shift.

Canvassing employees for shifts will occur at the onset of the trial and will be assigned based on seniority. Employees must be active, on payroll, at the time of canvassing to participate in the shift canvass.

Terms

For the purposes of this trial, the standard workday shall now constitute four (4) - ten (10) hour days. This shall now constitute the standard workweek for the duration of the trial.

The Parties agree that during this trial period, this MOA will not be used in any proceedings between the Parties except to resolve the disputes over the application of this MOA. In the spirit of collaboration, issues will be discussed during the quarterly meetings between the Parties. In no case shall any employee receive more vacation, time off, holidays, or accrual hours than what would be provided to an employee with a 5x8 schedule.

Holidays

With the exception of Thanksgiving week, as discussed below, an employee's schedule during a holiday week shall be the same as though it were not a holiday week.

PPS pays employees eight (8) hours for eligible holidays in accordance with Article 20. For the remaining two (2) hours, the employee may use two (2) hours of paid time, otherwise, the two (2) hours will be unpaid.

Employees who work their shift on a holiday shall be paid ten (10) hours of double (2x) at the regular rate in accordance with Appendix D. This premium pay will not be offset against daily or weekly overtime pay otherwise due for the week.

Employees who work on a holiday will not be given a day off to be taken at a later date.

Vacation

A vacation week will always equal forty (40) hours scheduled over four (4) - ten (10) hour days.

Vacation and time off will be taken in accordance with Article 16, Leaves.

If a vacation week is scheduled during a holiday week and the holiday falls on a scheduled work day, the day will be treated as a holiday, not as a day of vacation. PPS pays for eight (8) hours on a holiday. For the remaining two (2) hours, the employee may take vacation or personal time if they want to be paid; otherwise, the two (2) hours are unpaid.

Overtime and Callback

Employees called back to work outside of their 4x10 schedule will be compensated according to Article 14, Overtime and Callback.

Overtime is time worked in excess of ten (10) hours daily, or time worked in excess of forty (40) hours in a week and shall be paid at the rate of one and one-half (1 - 1 /2) times the employee's regular rate of pay. See Article 14 and Appendix D for Sundays and Holidays Overtime.

Breaks

Employees are entitled to one (1) thirty- (30) minute unpaid meal break period per day while working a ten (10)-hour day.

Employees are entitled to two (2) fifteen- (15) minute break periods per day while working a ten- (10) hour day.

Other Time Off

An employee who is excused for paid Union time activity, shall be paid for up to ten (10) hours for the day in accordance with the Contract.

Where four (4) ten-hour days are scheduled, approved absences up to ten (10) hours per day shall be paid in accordance with Appendix D.

In calendar years where there are 261 work days, the day after Thanksgiving will be designated as a non-work, non-paid day on the "District 260 Work Year Calendar." All shifts will be changed to Monday to Thursday and employees will continue to work their 4x10 schedule this week.

Evaluation Metrics

Trial results will be evaluated by the Parties who will designate equal representatives to determine the feasibility of recommending to continue to offer 4x10 schedules. The DCU designates their representatives as the DCU President and DCU Council Representative at a minimum.

MOA Cancellation

This MOA may be cancelled by either party with thirty (30) calendar days written notice. If this MOA is cancelled, employees will be returned to a 5x8 work week during the next payroll cycle following the effective date of the cancellation.

AFFILIATED UNIONS SERVICING THIS AGREEMENT

Bricklayers Local No. 1 (Appendix D)	503-232-0358
North Coast States Regional Council of Carpenters ~~Pacific Northwest Regional Council of Carpenters~~ (Appendix D)	~~503-261-1862~~ 503-305-5904
Cement Masons Local Union 555 (Appendix D)	503-232-9341
Electricians Local Union 48 (Appendices C, D)	503-256-4848
Glaziers Architectural Metal and Glass Workers Local Union 740 (Appendix D)	503-255-3920
Laborers Local Union 737 (Appendix D)	503-801-2209
Linoleum and Carpet Layers Local Union 1236 (Appendix D)	503-255-8444
Machinists District Council 24 (Appendices B, D)	503-656-1475 ~~503-238-5550~~
Painters District Council ~~5~~5 (Appendix D)	503-257-6644
Plasterers Local Union 82 (Appendix D)	503-232-3257
Plumbers & Steamfitters Local Union 290 (Appendix D)	503-691-5700
Sheet Metal Workers Local Union 16 (Appendix D)	503-254-0123
Teamsters Local Union 206 (Appendix A)	503-251-2344

SIGNATURE PAGE

The parties, by their authorized representatives, have set their hand to this agreement this _____ day of

_____, 20___

FOR THE DISTRICT COUNCIL OF UNIONS:

Garth Bachman Business Manager, IBEW Local 48	Kent Sickels Plasterers Local 82
Roman Ramos IUPAT DC 5 Local 10	~~Goeff Kossak~~ Nick Harrington Cement Masons Local 555
Goeff Stewart Secretary Treasurer, Teamsters Local 206	Carol Krohn Machinists District Council 24
Darrin Boyce Regional Representative, NW Regional Council of SMART, Local 16	David Coe Laborers Local 737
Pat Christensen Plumbers & Steamfitters Local 290	~~Doug Hicks~~ ~~Regional Manager, Western States Regiona~~l ~~Council of Carpenters~~ Jay Bradshaw, EST of the North Coast States Regional Council of Carpenters

FOR PORTLAND SCHOOL DISTRICT NO. 1, MULTNOMAH COUNTY:

Kimberly Gibson Sr. Director – Employee and Labor Relations	Jesse Atchison Program Manager - Nutrition Services
Frank Leavitt Sr. Director – Operations	Robert Brooks Fleet Maintenance Mgr - Student Transportation